

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

Docket No. 21-02

COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT

YSN Imports, Inc. d/b/a Flame King (the “Complainant” or “YSN”), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the paragraph 19 of the Initial Order and 46 C.F.R. 502.5(b) for confidential treatment of the attached motion to compel Respondents Feige “Peggy” Oberlander (“Oberlander”), U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (collectively “Respondents”) to produce documents in response to Complainant’s requests for documents propounded on September 3, 2021 (“Motion to Compel”). Confidentiality is sought for the attached Motion to Compel because materials designated as Confidential by Respondents pursuant to the applicable Protective Order are attached to the Motion as exhibits, and Confidential materials are discussed within the Motion.

A public version of the attached Motion Compel with confidential materials excluded will be filed simultaneous with this motion.

Dated: January 06, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh

J. Michael Cavanaugh

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By: /s/ Vincent J. Foley

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Flame King*

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BEFORE THE FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

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FEIGE “PEGGY” OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

Docket No. 21-02

COMPLAINANT’S MOTION TO COMPEL DOCUMENT REQUESTS

YSN Imports, Inc. d/b/a Flame King (the “Complainant” or “YSN”), by and through its attorneys Holland & Knight LLP, hereby move to compel Respondents Feige “Peggy” Oberlander (“Oberlander”), U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (collectively “Respondents”) to produce documents in response to Complainant’s requests for documents propounded on September 3, 2021. Specifically, Complainant seeks an order directing Respondents to produce certain financial documents more specifically identified below relating the Associations’ revenue and profits, and financial transactions between the Association, Management, and Oberlander. The financial documents sought by Complainant are directly related to Complainant’s allegations that the Association unlawfully acted “for-profit” in violation of the Shipping Act and Complainants alter ego / veil piercing allegations. The parties exchanged several emails, and on Wednesday December 15, 2021 met and conferred in an effort to resolve this discovery dispute, but those efforts have been

unsuccessful. Accordingly, and for all of the reasons stated below, Complainant's motion to compel should be granted.

Factual Background

Complainant initiated these proceedings with the filing of its complaint on February 26, 2021, alleging that the Association violated the Shipping Act by imposing on its members "for profit" fees, as well as alter ego/ veil piercing allegations that the Association is controlled and dominated by Management and Oberlander with a complete disregard for corporate form. On September 3, 2021, Complainant served discovery requests on Respondents, which requests included document request number 8 ("Request # 8") seeking financial documents related to the payments, disbursements, or transactions between the Association, Management, and Oberlander:

8. Any and all Documents and/or Communications referring or relating to payments or disbursements from the Association to Management and/or Oberlander and/or any third parties of the Association's revenue, profits, reimbursements or other financial transactions between the Association, Management, and Oberlander as they relate to the Shipping Association and its members.

Attached hereto as **Exhibit 1** is a true and correct of copy Complainant's Discovery Requests. Respondents produced over 16,000 documents in response to Complainant's discovery requests, but Respondent's production does not include critical documents responsive to Requests # 8. Specifically, Respondent's production is devoid of any bank account statements for the Association or Management, financial statements, profit and loss statements, or any records of accounts receivable, invoices paid by Members to the Association, or records of financial transactions between the Association, Management, and Oberlander.

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Complainant notified Respondent of this deficiency, as well as other deficiencies, in its email correspondence dated November 29, 2021. With respect to Requests # 8, Complainant noted:

Deficient Response to Document Request 8: We have not received documents relating to payments or disbursement from the Association to Management or any documents showing the Association's revenue, profits, reimbursements, or other financial transactions between the Association, Management, and Oberlander. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

Attached hereto as **Exhibit 2** is a true and correct copy of an email from Complainant's counsel to Respondent's counsel dated November 29, 2021, and a follow up email from Complainant's counsel to Respondent's counsel dated December 8, 2021. In its correspondence, Complainant further specified the type of financial documents that fall within the scope of Requests # 8 that Respondents have failed to produce, such as:

4. Any profit or loss statements generated by or for the Association and Management during the relevant time period;

5. Any and all expense reports generated by or for the Association and Management during the relevant time period;

8. All tax filings and tax returns for the Association and Management in 2020 and 2021 (including federal, state and local tax returns of any kind, e.g., corporate tax return, sales tax return, and payroll tax reports);

12. Any documents or records reflecting accounts receivable and accounts payable for the Association and Management during the relevant time period;

13. All documents concerning any transaction (e.g. description of services provided, date of transaction, payment or compensation, etc.) entered into between Association and Management.

14. All documents concerning any transaction (e.g. description of services provided, date of transaction, payment or compensation, etc.) entered into between Association and any officer, director, employee, or shareholder of Association or Management.

15. Identify bank account(s) that received management fees on behalf of the Association, and provide bank account statements for the identified account(s) during the relevant time period;

16. Identify bank account(s) from which expenses were paid on behalf of the Association, including payroll, and provide the bank account statements for the identified account(s) for during the relevant time period;

17. Bank account statements for the Association's and Management's accounts reflecting any and all transactions between the Association and Management during the relevant time period;

18. Bank Account statements for the Association's and Management's accounts reflecting any and all payments or disbursements to Oberlander, Green North America, or any other business or entity to which Oberlander has an ownership interest.

See Exhibit 2.

In response, Respondent's did not object to the relevancy of Requests # 8 or deny that responsive documents exist. Rather, Respondent's claimed that financial statements had been produced. Respondent's position further is that the follow up emails specifying deficiencies in the production are untimely as outside the scope of Request No. 8, and were not specifically requested in Complainant's initial document demands. As is evident from review of Request #8, its scope of is broader than just financial statements. In any event, Complainant's was unable to locate the referenced financial statements in Respondent's production. Accordingly, on December 9, 2021, Complainant requested that Respondents identify by bates stamp number the documents responsive to Requests # 8 purportedly included in Respondents' production. Attached hereto as **Exhibit 3** is a true and correct copy of the email exchange between Complainant's counsel and Respondent's counsel dated December 8 – 9, 2021. Remarkably, Respondents counsel refused to

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identify in its production the financial statements it claimed to be responsive to Requests # 8, and instead requested a meet and confer by phone to address the deficiencies noted by Complainant. Attached hereto as **Exhibit 4** is a true and correct copy of the email exchange between Complainant's counsel and Respondents' counsel dated December 10, 2021.

Counsel for the Parties' met and conferred by phone on December 15, 2021, during which call Respondents' counsel continued to refuse to identify by bates stamp number the documents purportedly produced by Respondents' responsive to Requests # 8. During the December 15 meet and confer, Respondents' counsel also took the position that the financial information sought with respect to Management is irrelevant because Management is allowed to operate for-profit, and accordingly Management's responsive documents are being withheld from production.

Following the Parties' meet and confer, by email on December 15, 2021, Respondents did produce two financial statements prepared for the Association by Jacob Glick & Associates L.L.P. dated February 15 and April 30, 2021. Attached hereto as **Exhibit 5** are true and correct copies of the financial statements produced by Respondents.¹ The financial statements include limited information concerning the Association's cash assets, liabilities, net sales, and "retained earnings." The April statement further reflects the payment by the Association of some \$427,500 in "operating expenses" and "management fees." While partially responsive to Requests # 8, the financial statements alone are insufficient. Respondents have failed to produce any of the supporting documents underlying the figures that appear in the two financial statement documents produced by Respondents, such as bank account statements, records of transactions, account receivable information, or records concerning Membership fees received (i.e. revenues) or expenses paid - all of which documents fall within the scope of Requests # 8. Furthermore,

¹ It should be noted that the financial statements produced by Respondents' on December 15, 2021, are not bates stamped and were not included in Respondents' document production as represented by Respondents' counsel.

Respondents' have withheld from production any and all financial documents from Management responsive to Complainant's Request # 8.

The deposition of Respondent Oberlander was conducted on December 16, 2021. Oberlander testified on her own behalf individually, and in her capacity as the designated corporate representative for the Association and Management pursuant to § 502.143(b)(6) of the Rules of Practice and Procedure of the Federal Maritime Commission. During her deposition Oberlander testified that:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Attached here to as **Exhibit 6** are the relevant portions of the Oberlander Transcript. Ms. Oberlander, however, could not recall exactly how much in fees the Association collected from

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the it Members in 2020 and 2021. [REDACTED]

[REDACTED]

[REDACTED].

Respondents, however, have not produced any financial documents or bank account statements from which Oberlander's testimony can be confirmed, or from which the total amounts paid by the Association to Management, and the ultimate disbursement of those payments by Management, can be determined. Respondents have also failed to produce any financial documents or records from which the Association's total revenues (i.e., the total fees collected from Members) can be calculated and ascertained.

Argument

"Parties' may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense." Rules of Practice and procedure of the Federal Maritime Commission § 502.141(e)(1). "Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence." *Id.* The financial documents sought by Complainant are directly relevant to the claims that the Association operated for-profit, and the alter-ego allegations that the Association was merely an instrument by which to pass on the fees collected by the Association from its Members to Management and Oberlander for their own personal benefit and gain. Request # 8 seeks documents from which the Associations profits (i.e., revenues and expenses) can be determined, and from which the financial transactions between the Association, Management, and Oberlander can be documented and ascertained. The documents that fall within the scope of Requests # 8 that Complainant specifically seeks to compel production through this motion include:

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1. All bank Account Statements for the Association's accounts for 2020 and 2021, including the JP Morgan Account ending 1876;
2. All bank Account Statements for Management's accounts for 2020 and 2021, including the account identified by Oberlander as having received the \$400,000 payment from Association reflected in the April financial statement;
3. Documents or records reflecting the Association's accounts receivable in 2020 and 2021, including records identifying all membership fee invoices sent directly by the Association to its Members;
4. Documents or records reflecting the membership fee invoices paid by Members to the Association in 2020 and 2021;
5. All financial statements prepared by or for the Association in 2020 and 2021;
6. All financial statements prepared by or for the Management in 2020 and 2021;
7. All documents or records, including all files generated by any accounting or bookkeeping software used by the association, that was provided by the Association to Jacob Glick & Associates for the purpose of preparing financial statements in 2020 and 2021, including the February and April statements.

The Oberlander testimony and the financial statements produced by Respondents confirm that these financial document do exist and are relevant to Complainant's claims. The bank account statements sought for the Association's and Management's accounts are necessary to account for the fees received by the Association, and to trace the flow of funds from the Association to Management and potentially Oberlander herself. These account statements are particularly important considering Oberlander's testimony that the purpose of the \$1,200 fee imposed by the Association was imposed on members to pay Management and to build up a multi-million dollar reserve in the Association's or Management's accounts.

Documents and records reflecting the Association's accounts receivable and invoices paid are necessary to determine the total amount of membership fees collected by the Association, and are crucial to determining whether the Association operated "for-profit." Such records will also

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confirm whether all of the revenues received by the Association are reflected in the Associations accounts, or whether revenues were potentially diverted elsewhere.

The two financial statements produced by Respondents, which statements were purportedly prepared by a CPA, make representations with respect to Association's total assets, liabilities, gross profits, and net income. If the statements are legitimate, the CPA who prepared the statements must have had access to and reviewed some financial records kept by the Association. The relevancy of the information contained in the financial statements with respect to the Complaint's claims cannot be seriously disputed. Accordingly, Complainant seeks an order compelling production of the financial transaction documents and other records that formed the basis of the financial statements belatedly produced by Respondents (on the eve of the Oberlander deposition). The documents sought to be compelled by Complainants are within the scope of Initial Request # 8, and certainly were specified by email correspondence prior to the deposition and should have been included in Respondent's production of responsive documents. Furthermore, Respondents' have produced only two financial statements dated February 15, and April 30. Complainant seeks the production of all financial statements prepare by or for the Association in 2020 and 2021, which is the relevant time period in this matter.

Respondents' contention that Management's financial documents are irrelevant is misguided and ignores the alter ego/ veil piercing allegations that have been asserted in this matter. As noted in the Order Denying Respondents' Motion to Dismiss dated July 7, 2021 (the "Order"), Complainant has asserted allegations "sufficient to plausibly allege that Management and Oberlander are alter egos and that the Association's corporate veil should be pierced." Order at 7. Domination and control are central to alter ego / veil piercing claims, and many of the major factors used to determine domination and control relate to the financial relationship between the subject

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entities and individuals, including: the commingling of funds and other assets; diversion of the corporations' funds or assets to non-corporate uses, and; whether the corporations are treated as independent profit centers. *See* Order at 5 – 6 (citing *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 29 S.R.R 119, 154 – 155 FMC Lexis 39 (FMC 2001)). The documents sought by Complainant in this motion from Management relate directly to these factors.

The documents and testimony already adduced during discovery demonstrate that most of the Association's revenues reported in the April financial statement were passed on to Management as "service and management fees," and that "service and management fees" collected by Management were mainly designated to pay Oberlander as her "salary." Management's bank account statements and financial statements are necessary to determine and confirm exactly how much of the Association's revenues were transferred to Management, whether any further Association funds were diverted to Management in excess of the amounts reflected in the April financial statement, whether there was a comingling of Association and Management funds within the entities' bank accounts, and whether Management was treated as an independent profit center. Management's financial documents bear directly on this disputed issue of fact and are well within the scope of discovery in this matter.

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Conclusion

For the foregoing reasons, Complainant requests that its motion to be compel be granted and the Respondents be ordered to produce the financial documents responsive to Complainant's discovery requests as specified above.

Dated: January 06, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh

J. Michael Cavanaugh

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By: /s/ Vincent J. Foley

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*Attorneys for YSN Imports Inc. d/b/a
Flame King*

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Exhibit 1

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FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 21-02

YSN IMPORTS INC. d/b/a FLAME KING, Complainant

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC., Respondents.

Discovery Requests

PLEASE TAKE NOTICE that, pursuant 46 C.F.R. Section 502.146(a), Plaintiff YSN Imports Inc. d/b/a Flame King hereby requests that all Respondents produce for inspection and copying the documents and electronically stored information specified herein within their possession, custody, or control, or in the possession, custody or control of any agent, employee, representative or other person acting or purporting to act on Respondents’ behalf at the offices of Holland & Knight LLP, attorneys for Plaintiffs, 31 West 52nd Street, New York, New York, 10019, within (30) days after service and on or before October 3, 2021 as provided in the scheduling order for this matter.

DEFINITIONS AND INSTRUCTIONS

The following definitions apply to all discovery requests:

1. Communication. The term “communication” means the transmittal of information (in the form of facts, idea, inquiries or otherwise).
2. Document or Record. The terms “document” or “record” are defined to be synonymous in meaning and equal in scope to the usage of the term “documents or electronically

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stored information” in Fed. R. Civ. P. 34(a)(1)(A). A draft or non-identical copy is a separate document within the meaning of this term.

3. Identify (with respect to person). When referring to a person, “to identify” means to give, to the extent known, the person’s full name, present or last known address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this subparagraph, only the name of that person need be listed in response to subsequent discovery requesting the identification of that person.

4. Identify (with respect to documents). When referring to documents, “to identify” means to give, to the extent known, the (i) type of document; (ii) general subject matter; (iii) date of the document; and (iv) author(s), addressee(s) and recipient(s). In the alternative, the responding party may produce the documents, together with identifying information sufficient to satisfy Fed. R. Civ. P. 33(d).

5. Parties. The terms “plaintiff” and “defendant” as well as a party’s full or abbreviated name or a pronoun referring to a party mean the party and, where applicable, its officers, directors, employees, partners, corporate parent, subsidiaries or affiliates. This definition is not intended to impose a discovery obligation on any person who is not a party to the litigation.

6. Person. The term “person” is defined as any natural person or any legal entity, including, without limitation, any business or governmental entity or association.

7. Concerning. The term “concern” or “concerning” means relating to, referring to, describing, evidencing or constituting.

8. Member. The term “Member” means a person with whom the Association entered into an agreement to pool container shipments for purposes of entering a Service Contract.

9. Association. The term “Association” means U Shippers Group Inc.

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10. Management. The term “Management” means U Shippers Group Management Co. Inc.

11. Rolling over. The term “Rolling over” means the practice of carrier to hold containers of cargo back when vessel space becomes limited.

12. Service Contract. The term “Service Contract” means a contract with an ocean carrier for container shipments.

The following rules of construction apply to all discovery requests:

1. All/any/Each. The terms “all,” and “each” shall each be construed as encompassing any and all.

2. And/or. The connectives “and” and “or” shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.

3. Number. The use of the singular form of any word includes the plural and vice versa.

4. If any document within the scope of this request has been destroyed, Defendants shall in their response hereto describe in detail the circumstances of such destruction, and shall produce any documents relating to such destruction, identify the document, describe the content and subject matter of the document, state the request to produce to which it would be responsive.

5. If a claim of privilege is asserted with respect to any document, state with respect to each such document the (1) date thereof, (2) the author, (3) the recipient(s), (4) the subject, (5) the privilege claimed; (6) a description of the document sufficient to demonstrate the applicability of the privilege claimed; (7) a description of any document or material transmitted with or attached to the document; and (8) the particular request to produce to which the document is responsive.

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6. If any information or data is withheld because such information or data is stored electronically, it is to be identified by the subject matter of the information or data and the place or places where such information is maintained.

7. Documents shall be produced in the manner that they are maintained.

8. Electronically stored information, such as e-mails and other data stored electronically, must be produced in electronic form in an intelligible format as well as in hard copy form, together with a description of the system from which it was derived.

9. Pursuant to § 502.141(k), Defendants shall promptly supplement their document production if they obtain or discover further responsive documents after their production of documents to Plaintiffs or for any other reason. The fact that investigation is continuing or that discovery is not complete shall not be used as an excuse for failure to respond to each request as fully as possible.

10. Unless otherwise indicated, the Relevant Time Period for the documents requested is from January 28, 2020 to the present.

DOCUMENTS REQUESTED

1. All Documents and/or Communications between or among Feige “Penny” Oberlander (“Oberlander”), U Shippers Groups Inc. (“the Association”), and U Shippers Group Management Co., Inc. (“Management”), referring or relating to the formation, operation and management of Management and the Association including: articles of incorporation, corporate formation applications, bylaws and amendments thereto, shareholder certificates, shareholder register list, shareholder meetings, board of director meetings, corporate resolutions, and powers of attorney.

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2. All Documents and/or Communications between or among Oberlander, the Association, and Management with shipper members of the Association referring or relating to container shipments under Service Contracts including, but not limited to all of the documents and communications exchanged with Maersk, Ocean Network Express (“O.N.E.”), and Poly & Bark.

3. All Documents and/or Communications between or among Oberlander, the Association, and Management concerning all charges, rates, fees and additional fees invoiced to Members for the services of the Association or Management.

4. All Documents and/or Communications between Respondents, Members and ocean carriers concerning freight contracts, negotiation of applicable rates and fees, and volume of shipments offered to ocean carriers for purposes of securing any Service Contract.

5. Any and all Documents and/or Communications concerning the Respondents’ decision to impose additional fees upon its Members for use of Service Contracts, including any supports for costs and expenses incurred by the Association justifying imposition of such charges, fees or additional fees.

6. Any and all Documents and/or Communications amongst Oberlander, Management, the Association concerning the payment of additional fees by Members including a complete accounting of revenue generated by the Association from its Members for collection of all fees, additional fees or charges to use Service Contracts.

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7. Any and all Documents and/or Communications referring or relating to the Association's quantity of container shipment bookings on behalf of their Members pursuant to Service Contracts with ocean carriers.

8. Any and all Documents and/or Communications referring or relating to payments or disbursements from the Association to Management and/or Oberlander and/or any third parties of the Association's revenue, profits, reimbursements or other financial transactions between the Association, Management, and Oberlander as they relate to the Shipping Association and its members.

9. Any and all contracts or agreements between the Association and its Members and any amendments and/or terminations thereto including all correspondence relating to such contracts or agreements.

10. Any and all communications between YSN and Oberlander, Management, and the Association concerning container shipments, Service Contracts, and the charges, fees or additional fees thereunder.

11. Documents and/or Communications referring or relating to any responses, complaints, claims or other issues by Members to Respondents relating to the rates, fees, additional fees or other charges imposed by the Association for use of its Service Contracts.

12. Documents and Communications concerning transfer of any funds from the Association to Management, Oberlander or any third party as payment for alleged "successful efforts on a continuing basis" to prevent Maersk or other ocean carriers from assessing substantially inflated spot rates.

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13. All Documents and Communications concerning allocations set by the Association for its Members (and in particular for Complainant) for use of the Service Contracts with Maersk or any other ocean carrier, including support for the Association's assertion that there was limited space available through the Maersk system and that Members should not overbook.

14. All Documents and Communications concerning termination of YSN d/b/a Flame King from the Association including any alleged overbooking, excessive or disproportionate use of the Service Contract with Maersk by Complainant.

15. All documents identified by Respondents in their Initial Disclosures.

16. All documents not previously identified above, which Respondents intend to use or rely upon in furtherance of its response and any defenses to the complaint, or in any dispositive motion in this action.

Dated: September 3, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh
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*Attorneys for YSN Imports Inc. d/b/a
Flame King*

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel for Respondents at the following address(es):

KOFFSKY SCHWALB LLC
Efrem Schwalb
Tal S. Benschar
500 Seventh Avenue, 8th Floor
New York, New York 10018
Tel.: 646-553-1590
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bcollins@gkgglaw.com
Counsel for Respondents
Feige "Peggy" Oberlander, U Shippers Group Inc., and U Shippers Group Management Co., Inc.

Executed: September 3, 2021

/s/ Vincent J. Foley

Vincent J. Foley

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Exhibit 2

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Denig, F. R (NYC - X73560)

From: Brendan Collins <BCollins@gkgglaw.com>
Sent: Wednesday, December 08, 2021 7:44 AM
To: Foley, Vincent (NYC - X73357); Kristine Little
Cc: Cavanaugh, J. Michael (WAS - X75084); Kalogjera-Sackellares, Chiara D (NYC - X73584); Denig, F. R (NYC - X73560)
Subject: RE: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

Categories: Red Category

[External email]

Dear Vincent,

I am writing in response to your correspondence of November 29 and December 6th.

November 29 correspondence

Your November 29 correspondence identifies purported deficiencies in the Respondents' document request responses. Specifically it states as follows:

Document Request No 3: Your letter states that there is little written correspondence among the Respondents regarding the assessment of additional charges and fees invoiced to Members. Communication in this regard was conducted verbally. Further, the Respondents produced Board Minute meeting addressing this issue. The emails of Mandy F and Debbie S have been searched. Invoices contained in Mandy F's emails have previously been produced.

Document Request No 4: You state that there should be more correspondence between Respondents and carriers concerning freight contracts, applicable fee rates, and volume of shipments. The Respondents have produced responsive documents in their possession including correspondence involving Krissy Van Niekirk and Dorothy Von Ahnen. Assuming the Request encompassed commission reports, which the Respondents dispute, no communications regarding commission reports was received from any carrier during the relevant time period.

Document Request No 5: To the extent that responsive documents exist, they have been produced.

Document Request No 6: The Respondents have produced the total list of containers moved since December 1st 2020, when the additional fees were imposed, and Respondents have produced financial statements for the time period when YSN was an Association member. This constitutes the universe of relevant documents.

Document Request No 7: Responsive documents have been produced.

Document Request No 8: Respondents have produced financial statements until April 30, 2021. These reflect a one-time disbursement to U Shippers Management.

Document Request No 9: Respondents have only terminated 3 members. All responsive documents have been produced.

De-Designation of Highly Confidential Documents: YSN seeks to disclose extremely sensitive confidential information, including regarding the business operations of Association members and of shipper rates, to Sam Newman, who is the

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Director of a competing shipper's association. For reasons that should be self-evident, the Respondents refuse to consent to the disclosure of such information to Mr. Newman.

December 6 correspondence. YSN's December 6th correspondence seeks to now compel the Respondents to produce eighteen (18) categories of newly identified documents. As you should be aware, a motion to compel, and a meet and confer, is not a vehicle for a party to seek documents it neglected to seek in discovery. Further, a review of the 18 new categories of documents sought confirms that the documents have no conceivable relevance to this litigation.

Feel free to call me if you wish to discuss this further.



Brendan Collins
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Tel: 202.342.6793 | Fax: 202.342.5207
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From: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>

Sent: Monday, November 29, 2021 8:01 PM

To: Brendan Collins <BCollins@gkglaw.com>; Kristine Little <klittle@gkglaw.com>

Cc: Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>

Subject: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

Dear Brendan,

As discussed earlier today, we have conducted a review of Respondents' supplemental production (and the prior initial production of pdf and excel documents), and have identified several deficiencies which require a cure by Respondents as soon as possible in order for Complainants to be in a position to comply with the revised scheduling order with a deadline to complete fact depositions by December 23.

We request Respondents' prompt attention to the following issues:

Document Request 3:

All Documents and/or Communications between or among Oberlander, the Association, and Management concerning all charges, rates, fees and additional fees invoiced to Members for the services of the Association or Management.

Deficient Response to Document Request 3: We have not received any documents between or among Respondents concerning the charges, fees, and additional fees invoiced to members for services of the Association or Management. We would expect to have been provided internal communications between Oberlander and others concerning the topics described in Request No. 3 including assessment of charges and additional fees invoiced to Members. Please review this issue with Respondents for additional responsive

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documents. If you believe all responsive documents have already been produced, please direct us to the bates numbers in USG's production. We also note that Oberlander is the only custodian for which emails were produced. Please produce the custodial documents responsive to Request No. 3 (and for that matter responsive to all of YSN's document requests) from the following custodians: mandyf@greennorthamerica.net and debbies@greennorthamerica.net.

Document Request 4:

All Documents and/or Communications between Respondents, Members and ocean carriers concerning freight contracts, negotiation of applicable rates and fees, and volume of shipments offered to ocean carriers for purposes of securing any Service Contract.

Deficient Response to Document Request 4: We have received only very limited exchanges between Respondents and Maersk concerning the negotiation of applicable rates, fees, and volumes of shipments for the relevant service contract. Furthermore, Respondents have not produced the monthly commission reports issued by Maersk to Respondents for at least the period of August 2020-July 2021. Please produce all of the communications between Respondents, Members and Carriers concerning negotiations of applicable rates and fees for the purposes of securing any Service Contract that are in Respondents possession. If it is your position that all the documents in Respondents' possession have been produced, direct us to the bates numbers in USG's production.

Document Request 5:

Any and all Documents and/or Communications concerning the Respondents' decision to impose additional fees upon its Members for use of Service Contracts, including any supports for costs and expenses incurred by the Association justifying imposition of such charges, fees or additional fees.

Deficient Response to Document Request 5: We have not received any documents or communications concerning costs and expenses incurred by the Association related to the imposition of the "additional fee" charged to members of \$600 per TEU or per \$1200 FEU . We have emails where Oberlander says they need to impose the additional fees, but no supporting documents. Please confirm that no responsive documents exist, or produce the responsive documents as soon as possible.

Document Request 6:

Any and all Documents and/or Communications amongst Oberlander, Management, the Association concerning the payment of additional fees by Members including a complete accounting of revenue generated by the Association from its Members for collection of all fees, additional fees or charges to use Service Contracts.

Deficient Response to Document Request 6: We have not identified any documents which reflect accounting of revenue generated by the Association for collection of all fees, additional fees or charges for use of relevant Service Contracts. Please produce these documents or direct us to the bates numbers where you produced documents responsive to this request.

Document Request 7:

Any and all Documents and/or Communications referring or relating to the Association's quantity of container shipment bookings on behalf of their Members pursuant to Service Contracts with ocean carriers.

PUBLIC VERSION

Deficient Response to Document Request 7: We asked for all documents related to quantity of container shipment bookings allocated to Members under the Service Contracts, and in particular allocations of shipments with Maersk. USG's production included a few responsive emails discussing quantities allocated to members, but we would expect there to be additional emails or other documentation concerning relevant quantities of container shipments allocated to members of the Association. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are responsive to this request and have already been produced.

Document Request 8:

Any and all Documents and/or Communications referring or relating to payments or disbursements from the Association to Management and/or Oberlander and/or any third parties of the Association's revenue, profits, reimbursements or other financial transactions between the Association, Management, and Oberlander as they related to the Shipping Association and its members.

Deficient Response to Document Request 8: We have not received documents relating to payments or disbursement from the Association to Management or any documents showing the Association's revenue, profits, reimbursements, or other financial transactions between the Association, Management, and Oberlander. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

Document Request 9:

Any and all contracts or agreements between the Association and its Members and any amendments and/or terminations thereto including all correspondence relating to such contracts or agreements.

Deficient Response to Document Request 9: We have received very few documents regarding termination of members by Respondents. According to USG00056725, Members (other than YSN) have been terminated by the Association, but we have only received a few termination documents for Complainant and responsive documents for one other member who was expelled in January 2021. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

"Highly Confidential" Designations

In our review of the Respondents' production we have noted an excessive and inappropriate use of the "Highly Confidential" designation. Over 64% of Respondents' supplemental production (over 9,600 documents of the 15,029 in total) have been marked as "Highly Confidential." In many cases, the documents designated "Highly Confidential" do not on their face contain competitively sensitive or proprietary information. Respondents' overuse of the designation has seriously restricted our ability to review and analyze the production, mainly because it restricts our ability to share the "Highly Confidential" documents with our client who possesses the commercial knowledge required to fully understand the documents and their context with respect to container shipments. In our view, Respondents excessive use of the "Highly Confidential" designation is abusive of the Protective Order, and appears intended to frustrate Complainant's ability to efficiently review the voluminous production of container shipment records.

Pursuant to Paragraph 7 of the Parties' consent motion for entry of a protective order (the "Protective Order"), before submitting a motion to the Presiding Officer requesting a change to Respondents' designations we are required to confer in a good faith effort to resolve any differences. In this regard, we believe that there is solution to remedy Respondents' expansive use of the "Highly Confidential" designation.

PUBLIC VERSION

We request Respondents' consent, pursuant to paragraph 3 of the Protective Order, to allow our client representative, Sam Newman, to review production documents designated "Highly Confidential" by providing access to our Firm's on-line review platform, Relativity. In other words, we would provide Mr. Newman with log-in credentials to Relativity that would allow him to review the materials on the platform to assist with the attorney review of the materials. Mr. Newman's credentials in Relativity would be limited to on platform review, and he will not have access to save, print, or download any of the "Highly Confidential" materials. Furthermore, we can set up his credentials for an agreed period consistent with the discovery schedule (i.e., from now until the end of expert discovery). Aside from allowing Mr. Newman "review only" access to the "Highly Confidential" materials, we will otherwise continue to treat the materials as "Highly Confidential" pursuant to the Protective Order.

We believe that this is a sensible resolution, and would avoid protracted motion practice seeking to de-designate materials improperly marked as "Highly Confidential."

Please provide a response to the foregoing as soon as practicable.

Sincerely yours,

Vincent J. Foley

Vincent Foley | Holland & Knight

Partner

Holland & Knight LLP

31 West 52nd Street | New York, New York 10019

Phone 212.513.3357 | Fax 212.341.7182 | Mobile 917.656.1721

vincent.foley@hklaw.com | www.hklaw.com

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PUBLIC VERSION

Exhibit 3

PUBLIC VERSION

Denig, F. R (NYC - X73560)

From: Foley, Vincent (NYC - X73357)
Sent: Thursday, December 09, 2021 6:39 PM
To: 'Brendan Collins'; Kristine Little
Cc: Cavanaugh, J. Michael (WAS - X75084); Kalogjera-Sackellares, Chiara D (NYC - X73584); Denig, F. R (NYC - X73560)
Subject: RE: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production
Categories: Red Category

Dear Brendan, We write in reply to your below correspondence concerning YSN's noted deficiencies in Respondents' production.

You state in response to several of our requests that "responsive documents" have been produced (see highlighted responses below), and you refer to some specific documents by date or other description. We have reviewed Respondents' production and have not identified those allegedly responsive documents. We believe some of the document deficiencies with USG's production may be resolved if you would please identify the bates number (as we have requested) in the USG production or by reproducing bates stamped copies of the referenced documents that you believe are responsive to YSN's requests.

We cannot determine if the purported responsive documents are actually responsive if you do not identify those documents. We request that you do so in response to this email.

We are available to meet and confer further by telephone if you think that will be productive as to these documents, the de-designation issue, or the specific requests for financial documents (December 6 email). We need your further response by close of business tomorrow Friday, December 10. If we are required to make a motion to compel, we reserve the right to recall USG's witnesses to testify concerning any documents that are produced after the scheduled depositions.

Regards,
Vincent

Vincent Foley | Holland & Knight

Partner
Holland & Knight LLP
31 West 52nd Street | New York, New York 10019
Phone 212.513.3357 | Fax 212.341.7182 | Mobile 917.656.1721
vincent.foley@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

From: Brendan Collins <BCollins@gkglaw.com>
Sent: Wednesday, December 08, 2021 7:44 AM
To: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>; Kristine Little <klittle@gkglaw.com>
Cc: Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>

PUBLIC VERSION

Subject: RE: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

[External email]

Dear Vincent,

I am writing in response to your correspondence of November 29 and December 6th.

November 29 correspondence

Your November 29 correspondence identifies purported deficiencies in the Respondents' document request responses. Specifically it states as follows:

Document Request No 3: Your letter states that there is little written correspondence among the Respondents regarding the assessment of additional charges and fees invoiced to Members. Communication in this regard was conducted verbally. Further, the Respondents produced Board Minute meeting addressing this issue. The emails of Mandy F and Debbie S have been searched. Invoices contained in Mandy F's emails have previously been produced.

Document Request No 4: You state that there should be more correspondence between Respondents and carriers concerning freight contracts, applicable fee rates, and volume of shipments. The Respondents have produced responsive documents in their possession including correspondence involving Krissy Van Niekirk and Dorothy Von Ahnen. Assuming the Request encompassed commission reports, which the Respondents dispute, no communications regarding commission reports was received from any carrier during the relevant time period.

Document Request No 5: To the extent that responsive documents exist, they have been produced.

Document Request No 6: The Respondents have produced the total list of containers moved since December 1st 2020, when the additional fees were imposed, and Respondents have produced financial statements for the time period when YSN was an Association member. This constitutes the universe of relevant documents.

Document Request No 7: Responsive documents have been produced.

Document Request No 8: Respondents have produced financial statements until April 30, 2021. These reflect a one-time disbursement to U Shippers Management.

Document Request No 9: Respondents have only terminated 3 members. All responsive documents have been produced.

De-Designation of Highly Confidential Documents: YSN seeks to disclose extremely sensitive confidential information, including regarding the business operations of Association members and of shipper rates, to Sam Newman, who is the Director of a competing shipper's association. For reasons that should be self-evident, the Respondents refuse to consent to the disclosure of such information to Mr. Newman. We will address this issue separately.

December 6 correspondence. YSN's December 6th correspondence seeks to now compel the Respondents to produce eighteen (18) categories of newly identified documents. As you should be aware, a motion to compel, and a meet and confer, is not a vehicle for a party to seek documents it neglected to seek in discovery. Further, a review of the 18 new categories of documents sought confirms that the documents have no conceivable relevance to this litigation. We will address this issue separately.

Feel free to call me if you wish to discuss this further.

PUBLIC VERSION



Brendan Collins
Principal | GKG Law, P.C.
1055 Thomas Jefferson Street NW | Suite 500
Washington, DC 20007
Tel: 202.342.6793 | Fax: 202.342.5207
bcollins@gkglaw.com | www.gkglaw.com

From: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>
Sent: Monday, November 29, 2021 8:01 PM
To: Brendan Collins <BCollins@gkglaw.com>; Kristine Little <klittle@gkglaw.com>
Cc: Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>
Subject: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

Dear Brendan,

As discussed earlier today, we have conducted a review of Respondents' supplemental production (and the prior initial production of pdf and excel documents), and have identified several deficiencies which require a cure by Respondents as soon as possible in order for Complainants to be in a position to comply with the revised scheduling order with a deadline to complete fact depositions by December 23.

We request Respondents' prompt attention to the following issues:

Document Request 3:

All Documents and/or Communications between or among Oberlander, the Association, and Management concerning all charges, rates, fees and additional fees invoiced to Members for the services of the Association or Management.

Deficient Response to Document Request 3: We have not received any documents between or among Respondents concerning the charges, fees, and additional fees invoiced to members for services of the Association or Management. We would expect to have been provided internal communications between Oberlander and others concerning the topics described in Request No. 3 including assessment of charges and additional fees invoiced to Members. Please review this issue with Respondents for additional responsive documents. If you believe all responsive documents have already been produced, please direct us to the bates numbers in USG's production. We also note that Oberlander is the only custodian for which emails were produced. Please produce the custodial documents responsive to Request No. 3 (and for that matter responsive to all of YSN's document requests) from the following custodians: mandyf@greennorthamerica.net and debbies@greennorthamerica.net.

Document Request 4:

All Documents and/or Communications between Respondents, Members and ocean carriers concerning freight contracts, negotiation of applicable rates and fees, and volume of shipments offered to ocean carriers for purposes of securing any Service Contract.

PUBLIC VERSION

Deficient Response to Document Request 4: We have received only very limited exchanges between Respondents and Maersk concerning the negotiation of applicable rates, fees, and volumes of shipments for the relevant service contract. Furthermore, Respondents have not produced the monthly commission reports issued by Maersk to Respondents for at least the period of August 2020-July 2021. Please produce all of the communications between Respondents, Members and Carriers concerning negotiations of applicable rates and fees for the purposes of securing any Service Contract that are in Respondents possession. If it is your position that all the documents in Respondents' possession have been produced, direct us to the bates numbers in USG's production.

Document Request 5:

Any and all Documents and/or Communications concerning the Respondents' decision to impose additional fees upon its Members for use of Service Contracts, including any supports for costs and expenses incurred by the Association justifying imposition of such charges, fees or additional fees.

Deficient Response to Document Request 5: We have not received any documents or communications concerning costs and expenses incurred by the Association related to the imposition of the "additional fee" charged to members of \$600 per TEU or per \$1200 FEU . We have emails where Oberlander says they need to impose the additional fees, but no supporting documents. Please confirm that no responsive documents exist, or produce the responsive documents as soon as possible.

Document Request 6:

Any and all Documents and/or Communications amongst Oberlander, Management, the Association concerning the payment of additional fees by Members including a complete accounting of revenue generated by the Association from its Members for collection of all fees, additional fees or charges to use Service Contracts.

Deficient Response to Document Request 6: We have not identified any documents which reflect accounting of revenue generated by the Association for collection of all fees, additional fees or charges for use of relevant Service Contracts. Please produce these documents or direct us to the bates numbers where you produced documents responsive to this request.

Document Request 7:

Any and all Documents and/or Communications referring or relating to the Association's quantity of container shipment bookings on behalf of their Members pursuant to Service Contracts with ocean carriers.

Deficient Response to Document Request 7: We asked for all documents related to quantity of container shipment bookings allocated to Members under the Service Contracts, and in particular allocations of shipments with Maersk. USG's production included a few responsive emails discussing quantities allocated to members, but we would expect there to be additional emails or other documentation concerning relevant quantities of container shipments allocated to members of the Association. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are responsive to this request and have already been produced.

Document Request 8:

PUBLIC VERSION

Any and all Documents and/or Communications referring or relating to payments or disbursements from the Association to Management and/or Oberlander and/or any third parties of the Association's revenue, profits, reimbursements or other financial transactions between the Association, Management, and Oberlander as they related to the Shipping Association and its members.

Deficient Response to Document Request 8: We have not received documents relating to payments or disbursement from the Association to Management or any documents showing the Association's revenue, profits, reimbursements, or other financial transactions between the Association, Management, and Oberlander. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

Document Request 9:

Any and all contracts or agreements between the Association and its Members and any amendments and/or terminations thereto including all correspondence relating to such contracts or agreements.

Deficient Response to Document Request 9: We have received very few documents regarding termination of members by Respondents. According to USG00056725, Members (other than YSN) have been terminated by the Association, but we have only received a few termination documents for Complainant and responsive documents for one other member who was expelled in January 2021. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

"Highly Confidential" Designations

In our review of the Respondents' production we have noted an excessive and inappropriate use of the "Highly Confidential" designation. Over 64% of Respondents' supplemental production (over 9,600 documents of the 15,029 in total) have been marked as "Highly Confidential." In many cases, the documents designated "Highly Confidential" do not on their face contain competitively sensitive or proprietary information. Respondents' overuse of the designation has seriously restricted our ability to review and analyze the production, mainly because it restricts our ability to share the "Highly Confidential" documents with our client who possesses the commercial knowledge required to fully understand the documents and their context with respect to container shipments. In our view, Respondents excessive use of the "Highly Confidential" designation is abusive of the Protective Order, and appears intended to frustrate Complainant's ability to efficiently review the voluminous production of container shipment records.

Pursuant to Paragraph 7 of the Parties' consent motion for entry of a protective order (the "Protective Order"), before submitting a motion to the Presiding Officer requesting a change to Respondents' designations we are required to confer in a good faith effort to resolve any differences. In this regard, we believe that there is solution to remedy Respondents' expansive use of the "Highly Confidential" designation.

We request Respondents' consent, pursuant to paragraph 3 of the Protective Order, to allow our client representative, Sam Newman, to review production documents designated "Highly Confidential" by providing access to our Firm's on-line review platform, Relativity. In other words, we would provide Mr. Newman with log-in credentials to Relativity that would allow him to review the materials on the platform to assist with the attorney review of the materials. Mr. Newman's credentials in Relativity would be limited to on platform review, and he will not have access to save, print, or download any of the "Highly Confidential" materials. Furthermore, we can set up his credentials for an agreed period consistent with the discovery schedule (i.e., from now until the end of expert discovery). Aside from allowing Mr. Newman "review only" access to the "Highly Confidential" materials, we will otherwise continue to treat the materials as "Highly Confidential" pursuant to the Protective Order.

PUBLIC VERSION

We believe that this is a sensible resolution, and would avoid protracted motion practice seeking to de-designate materials improperly marked as “Highly Confidential.”

Please provide a response to the foregoing as soon as practicable.

Sincerely yours,

Vincent J. Foley

Vincent Foley | Holland & Knight

Partner

Holland & Knight LLP

31 West 52nd Street | New York, New York 10019

Phone 212.513.3357 | Fax 212.341.7182 | Mobile 917.656.1721

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PUBLIC VERSION

Exhibit 4

PUBLIC VERSION

Denig, F. R (NYC - X73560)

From: Brendan Collins <BCollins@gkgglaw.com>
Sent: Friday, December 10, 2021 5:15 PM
To: Foley, Vincent (NYC - X73357)
Cc: Kristine Little; Cavanaugh, J. Michael (WAS - X75084); Kalogjera-Sackellares, Chiara D (NYC - X73584); Denig, F. R (NYC - X73560)
Subject: Re: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

Categories: Red Category

[External email]

Vincent, the Respondents produced a large volume of documents. At your insistence, and at significant cost, they also produced the documents in Tiff form. This was expressly done for you and your client to easily search the document production and identify specific responsive documents. Despite this fact, you are now suggesting that the Respondents must take the time to pore through the hundred thousand documents and identify individual documents on your behalf. Such a request is patently unreasonable.

Nonetheless, in a spirit of cooperation and and to comply with meet and confer requirements, I am available Monday afternoon or Tuesday morning to discuss this further. For the avoidance of doubt, the Respondents' position that it is not obligated to produce documents not timely sought, and irrelevant and unduly burdensome requests, remains unchanged.

Sent from my iPhone

On Dec 10, 2021, at 10:48 AM, Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com> wrote:

Brendan, There absolutely is an obligation to identify documents in discovery. *See* Fed. R. Civ. P. Rule 26 (a)(1)(A)(ii) and Rule 34(E)(i) (A). FMC Regulations further states that parties may obtain discovery concerning the description and location of documents, which regulation permits Complainant to request that Respondents identify the description and location (we have asked for a bates number reference) of documents purported to be in its production. 46 CFR § 141(e)(1).

More importantly, the Parties have an obligation to resolve discovery disputes before presenting the issue to the Presiding Officer in a motion to compel. If responsive documents have actually been produced, Respondents can easily resolve this dispute by simply identifying them. It is not a burdensome request. Presumably, you have identified the bates number and can provide the description and location within the production of the allegedly responsive documents within Respondents' initial PDF production or supplemental production. Respondents refusal to make any effort to resolve this dispute will be one of the bases for relief from the Presiding Officer if we are forced to make a motion to compel.

From a more practical perspective, Respondents will in any event be required to produce additional documents or identify and describe allegedly responsive documents. The Presiding Officer will expect the parties to have worked together in good faith to resolve discovery disputes and avoid unnecessary motions. Your refusal to provide anything but "responsive

PUBLIC VERSION

documents have been produced” in response to our specific requests to identify what you say has been produced is a violation of the obligation to work towards resolution of discovery disputes. If Respondents are not going to identify the responsive documents in opposition to our motion, that will just tend to support Complainant’s position that the responsive documents are not actually in Respondents’ production.

We have made a good faith effort to searched USG’s initial and supplemental productions, but we have not found the document responsive to our requests as outlined below. You say responsive documents have been produced. Please identify and describe them by Bates number or produce them again in pdf format which, as we have said, will likely resolve at least some of the document deficiencies in USG’s production.

Regards,
Vincent

Vincent Foley | Holland & Knight

Partner

Holland & Knight LLP

31 West 52nd Street | New York, New York 10019

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vincent.foley@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

From: Brendan Collins <BCollins@gkglaw.com>

Sent: Friday, December 10, 2021 8:21 AM

To: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>

Cc: Kristine Little <klittle@gkglaw.com>; Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>

Subject: Re: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

[External email]

Vincent, I am not aware of any obligation of a party to walk a counter-party through a document production and identify the individual documents that have been produced. If there is such an obligation under Commission Rules (or the Federal Rules), please let me know where it is set forth.

Thank you.

Sent from my iPhone

On Dec 9, 2021, at 6:38 PM, Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com> wrote:

PUBLIC VERSION

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You state in response to several of our requests that "responsive documents" have been produced (see highlighted responses below), and you refer to some specific documents by date or other description. We have reviewed Respondents' production and have not identified those allegedly responsive documents. We believe some of the document deficiencies with USG's production may be resolved if you would please identify the bates number (as we have requested) in the USG production or by reproducing bates stamped copies of the referenced documents that you believe are responsive to YSN's requests.

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Partner

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From: Brendan Collins <BCollins@gkglaw.com>

Sent: Wednesday, December 08, 2021 7:44 AM

To: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>; Kristine Little <klittle@gkglaw.com>

Cc: Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>

Subject: RE: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 - Deficiencies in Respondents' Document Production

[External email]

Dear Vincent,

PUBLIC VERSION

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Document Request No 3: Your letter states that there is little written correspondence among the Respondents regarding the assessment of additional charges and fees invoiced to Members. Communication in this regard was conducted verbally. Further, the Respondents produced Board Minute meeting addressing this issue. The emails of Mandy F and Debbie S have been searched. Invoices contained in Mandy F's emails have previously been produced.

Document Request No 4: You state that there should be more correspondence between Respondents and carriers concerning freight contracts, applicable fee rates, and volume of shipments. The Respondents have produced responsive documents in their possession including correspondence involving Krissy Van Niekirk and Dorothy Von Ahnen. Assuming the Request encompassed commission reports, which the Respondents dispute, no communications regarding commission reports was received from any carrier during the relevant time period.

Document Request No 5: To the extent that responsive documents exist, they have been produced.

Document Request No 6: The Respondents have produced the total list of containers moved since December 1st 2020, when the additional fees were imposed, and Respondents have produced financial statements for the time period when YSN was an Association member. This constitutes the universe of relevant documents.

Document Request No 7: Responsive documents have been produced.

Document Request No 8: Respondents have produced financial statements until April 30, 2021. These reflect a one-time disbursement to U Shippers Management.

Document Request No 9: Respondents have only terminated 3 members. All responsive documents have been produced.

De-Designation of Highly Confidential Documents: YSN seeks to disclose extremely sensitive confidential information, including regarding the business operations of Association members and of shipper rates, to Sam Newman, who is the Director of a competing shipper's association. For reasons that should be self-evident, the Respondents refuse to consent to the disclosure of such information to Mr. Newman. We will address this issue separately.

December 6 correspondence. YSN's December 6th correspondence seeks to now compel the Respondents to produce eighteen (18) categories of newly identified documents. As you should be aware, a motion to compel, and a meet and confer, is not a vehicle for a party to seek documents it neglected to seek in discovery. Further, a review of the 18 new categories of documents sought confirms that the documents have no conceivable relevance to this litigation. We will address this issue separately.

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Feel free to call me if you wish to discuss this further.

<image002.jpg>

Brendan Collins

Principal | GKG Law, P.C.

1055 Thomas Jefferson Street NW | Suite 500

Washington, DC 20007

Tel: 202.342.6793 | Fax: 202.342.5207

bcollins@gkglaw.com | www.gkglaw.com

From: Foley, Vincent (NYC - X73357) <Vincent.Foley@hklaw.com>

Sent: Monday, November 29, 2021 8:01 PM

To: Brendan Collins <BCollins@gkglaw.com>; Kristine Little <klittle@gkglaw.com>

Cc: Cavanaugh, J. Michael (WAS - X75084) <michael.cavanaugh@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Denig, F. R (NYC - X73560) <Robert.Denig@hklaw.com>

Subject: YSN d/b/a Flame King v. Oberlander et. al. - FMC Docket No. 21-02 -
Deficiencies in Respondents' Document Production

Dear Brendan,

As discussed earlier today, we have conducted a review of Respondents' supplemental production (and the prior initial production of pdf and excel documents), and have identified several deficiencies which require a cure by Respondents as soon as possible in order for Complainants to be in a position to comply with the revised scheduling order with a deadline to complete fact depositions by December 23.

We request Respondents' prompt attention to the following issues:

Document Request 3:

All Documents and/or Communications between or among Oberlander, the Association, and Management concerning all charges, rates, fees and additional fees invoiced to Members for the services of the Association or Management.

Deficient Response to Document Request 3: We have not received any documents between or among Respondents concerning the charges, fees, and additional fees invoiced to members for services of the Association or Management. We would expect to have been provided internal communications between Oberlander and others concerning the topics described in Request No. 3 including assessment of charges and additional fees invoiced to Members. Please

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review this issue with Respondents for additional responsive documents. If you believe all responsive documents have already been produced, please direct us to the bates numbers in USG's production. We also note that Oberlander is the only custodian for which emails were produced. Please produce the custodial documents responsive to Request No. 3 (and for that matter responsive to all of YSN's document requests) from the following custodians: mandyf@greennorthamerica.net and debbies@greennorthamerica.net.

Document Request 4:

All Documents and/or Communications between Respondents, Members and ocean carriers concerning freight contracts, negotiation of applicable rates and fees, and volume of shipments offered to ocean carriers for purposes of securing any Service Contract.

Deficient Response to Document Request 4: We have received only very limited exchanges between Respondents and Maersk concerning the negotiation of applicable rates, fees, and volumes of shipments for the relevant service contract. Furthermore, Respondents have not produced the monthly commission reports issued by Maersk to Respondents for at least the period of August 2020-July 2021. Please produce all of the communications between Respondents, Members and Carriers concerning negotiations of applicable rates and fees for the purposes of securing any Service Contract that are in Respondents possession. If it is your position that all the documents in Respondents' possession have been produced, direct us to the bates numbers in USG's production.

Document Request 5:

Any and all Documents and/or Communications concerning the Respondents' decision to impose additional fees upon its Members for use of Service Contracts, including any supports for costs and expenses incurred by the Association justifying imposition of such charges, fees or additional fees.

Deficient Response to Document Request 5: We have not received any documents or communications concerning costs and expenses incurred by the Association related to the imposition of the "additional fee" charged to members of \$600 per TEU or per \$1200 FEU . We have emails where Oberlander says they need to impose the additional fees, but no supporting documents. Please confirm that no responsive documents exist, or produce the responsive documents as soon as possible.

Document Request 6:

Any and all Documents and/or Communications amongst Oberlander, Management, the Association concerning the payment of additional fees by Members including a complete accounting of revenue generated by the Association from its Members for collection of all fees, additional fees or charges to use Service Contracts.

PUBLIC VERSION

Deficient Response to Document Request 6: We have not identified any documents which reflect accounting of revenue generated by the Association for collection of all fees, additional fees or charges for use of relevant Service Contracts. Please produce these documents or direct us to the bates numbers where you produced documents responsive to this request.

Document Request 7:

Any and all Documents and/or Communications referring or relating to the Association's quantity of container shipment bookings on behalf of their Members pursuant to Service Contracts with ocean carriers.

Deficient Response to Document Request 7: We asked for all documents related to quantity of container shipment bookings allocated to Members under the Service Contracts, and in particular allocations of shipments with Maersk. USG's production included a few responsive emails discussing quantities allocated to members, but we would expect there to be additional emails or other documentation concerning relevant quantities of container shipments allocated to members of the Association. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are responsive to this request and have already been produced.

Document Request 8:

Any and all Documents and/or Communications referring or relating to payments or disbursements from the Association to Management and/or Oberlander and/or any third parties of the Association's revenue, profits, reimbursements or other financial transactions between the Association, Management, and Oberlander as they related to the Shipping Association and its members.

Deficient Response to Document Request 8: We have not received documents relating to payments or disbursement from the Association to Management or any documents showing the Association's revenue, profits, reimbursements, or other financial transactions between the Association, Management, and Oberlander. Please produce all responsive documents or direct us to the bates numbers in USG's production you believe are documents responsive to this request and have already been produced.

Document Request 9:

Any and all contracts or agreements between the Association and its Members and any amendments and/or terminations thereto including all correspondence relating to such contracts or agreements.

Deficient Response to Document Request 9: We have received very few documents regarding termination of members by Respondents. According to USG00056725, Members (other than YSN) have been terminated by the Association, but we have only received a few termination documents for Complainant and responsive documents for one other member who was expelled in January 2021. Please produce all responsive documents or direct us to the bates

PUBLIC VERSION

numbers in USG's production you believe are documents responsive to this request and have already been produced.

"Highly Confidential" Designations

In our review of the Respondents' production we have noted an excessive and inappropriate use of the "Highly Confidential" designation. Over 64% of Respondents' supplemental production (over 9,600 documents of the 15,029 in total) have been marked as "Highly Confidential." In many cases, the documents designated "Highly Confidential" do not on their face contain competitively sensitive or proprietary information. Respondents' overuse of the designation has seriously restricted our ability to review and analyze the production, mainly because it restricts our ability to share the "Highly Confidential" documents with our client who possesses the commercial knowledge required to fully understand the documents and their context with respect to container shipments. In our view, Respondents excessive use of the "Highly Confidential" designation is abusive of the Protective Order, and appears intended to frustrate Complainant's ability to efficiently review the voluminous production of container shipment records.

Pursuant to Paragraph 7 of the Parties' consent motion for entry of a protective order (the "Protective Order"), before submitting a motion to the Presiding Officer requesting a change to Respondents' designations we are required to confer in a good faith effort to resolve any differences. In this regard, we believe that there is solution to remedy Respondents' expansive use of the "Highly Confidential" designation.

We request Respondents' consent, pursuant to paragraph 3 of the Protective Order, to allow our client representative, Sam Newman, to review production documents designated "Highly Confidential" by providing access to our Firm's on-line review platform, Relativity. In other words, we would provide Mr. Newman with log-in credentials to Relativity that would allow him to review the materials on the platform to assist with the attorney review of the materials. Mr. Newman's credentials in Relativity would be limited to on platform review, and he will not have access to save, print, or download any of the "Highly Confidential" materials. Furthermore, we can set up his credentials for an agreed period consistent with the discovery schedule (i.e., from now until the end of expert discovery). Aside from allowing Mr. Newman "review only" access to the "Highly Confidential" materials, we will otherwise continue to treat the materials as "Highly Confidential" pursuant to the Protective Order.

We believe that this is a sensible resolution, and would avoid protracted motion practice seeking to de-designate materials improperly marked as "Highly Confidential."

Please provide a response to the foregoing as soon as practicable.

Sincerely yours,

Vincent J. Foley

PUBLIC VERSION

Vincent Foley | Holland & Knight

Partner

Holland & Knight LLP

31 West 52nd Street | New York, New York 10019

Phone 212.513.3357 | Fax 212.341.7182 | Mobile 917.656.1721

vincent.foley@hklaw.com | www.hklaw.com

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Exhibit 5

PUBLIC VERSION

U Shippers Group Inc

Financial Statements

February 15, 2021

PUBLIC VERSION

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PUBLIC VERSION

JACOB GLICK & ASSOCIATES L.L.P.

Member of NYSSCPA
Peer Reviewed

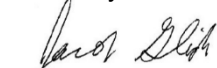
3611-14th Ave Suite 613
Brooklyn, NY 11218
Tel: (718) 972-0187
Fax: (718) 436-5997
Office@jacobglickcpa.com

To the Shareholders
U Shippers Group Inc
Brooklyn, NY 11205

Management is responsible for the accompanying financial statements of U Shippers Group Inc. which comprise the balance sheet as of February 15, 2021, and the related statement of income and retained earnings for the Twelve months then ended in accordance with accounting principles generally accepted in the United States of America. We have performed a compilation engagement in accordance with Statements on Standards for Accounting and Review Services promulgated by the Accounting and Review Services Committee of the AICPA. We did not audit or review the financial statements nor were we required to perform any procedures to verify the accuracy or completeness of the information provided by management. Accordingly, we do not express an opinion, a conclusion, nor provide any form of assurance on these financial statements.

Management has elected to omit substantially all the notes and disclosures required by accounting principles generally accepted in the United States of America. If the omitted notes and disclosures were included in the financial statements, they might influence the user's conclusions about the Company's assets, liabilities, equity, revenue, and expenses. Accordingly, the financial statements are not designed for those who are not informed about such matters.

Sincerely,


Jacob Glick, CPA

Jacob Glick & Associates LLP
Brooklyn, NY 11218

October 11, 2021

PUBLIC VERSION

U SHIPPERS GROUP INC
Balance Sheet Cash Basis
February 15, 2021

ASSETS			
CURRENT ASSETS			
Cash In Bank	\$	195,615	
Total Current Assets			<u>\$ 195,615</u>
Total Assets			<u><u>\$ 195,615</u></u>
 LIABILITIES & EQUITY			
CURRENT LIABILITIES			
Loans Payable		<u>58,764</u>	
Total Current Liabilities			<u>\$ 58,764</u>
Retained Earnings		<u>136,850</u>	
Total Stockholders Equity			<u>136,850</u>
Total Liabilities and Equity			<u><u>\$ 195,615</u></u>

U SHIPPERS GROUP INC
Statement of Income and Retained Earnings
For The Twelve Months Ended February 15, 2021

See Accountant's Compilation Report

PUBLIC VERSION

U Shippers Group Inc

Financial Statements

April 30, 2021

PUBLIC VERSION

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PUBLIC VERSION

JACOB GLICK & ASSOCIATES L.L.P.

Member of NYSSCPA
Peer Reviewed

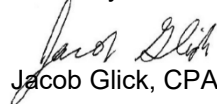
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Brooklyn, NY 11218
Tel: (718) 972-0187
Fax: (718) 436-5997
Office@jacobglickcpa.com

To the Shareholders
U Shippers Group Inc
Brooklyn, NY 11205

Management is responsible for the accompanying financial statements of U Shippers Group Inc. which comprise the balance sheet as of April 30, 2021, and the related statement of income and retained earnings for the Twelve months then ended in accordance with accounting principles generally accepted in the United States of America. We have performed a compilation engagement in accordance with Statements on Standards for Accounting and Review Services promulgated by the Accounting and Review Services Committee of the AICPA. We did not audit or review the financial statements nor were we required to perform any procedures to verify the accuracy or completeness of the information provided by management. Accordingly, we do not express an opinion, a conclusion, nor provide any form of assurance on these financial statements.

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Sincerely,



Jacob Glick, CPA

Jacob Glick & Associates LLP
Brooklyn, NY 11218

October 11, 2021

PUBLIC VERSION

U SHIPPERS GROUP INC
Balance Sheet Cash Basis
April 30, 2021

ASSETS	
CURRENT ASSETS	
Cash In Bank	\$ 291,289
Total Current Assets	<u>\$ 291,289</u>
Total Assets	<u><u>\$ 291,289</u></u>
 LIABILITIES & EQUITY	
CURRENT LIABILITIES	
Loans Payable	<u>62,252</u>
Total Current Liabilities	\$ 62,252
Retained Earnings	<u>229,036</u>
Total Stockholders Equity	<u>229,036</u>
Total Liabilities and Equity	<u><u>\$ 291,289</u></u>

PUBLIC VERSION

U SHIPPERS GROUP INC
Statement of Income and Retained Earnings
For The Twelve Months Ended April 30, 2021

Net Sales		\$ 656,536
Gross Profit		656,536
General and Administrative Expenses :		
Operating Expenses	<u>427,500</u>	
Net Income		229,036
Net Income (Loss) to Retained Earnings		<u>229,036</u>
Retained Earnings, April 30, 2021		<u><u>\$ 229,036</u></u>

PUBLIC VERSION

U SHIPPERS GROUP INC
Schedules of COGS and Expenses
For The Twelve Months Ended April 30, 2021

General and Administrative Expenses		
Operating Expenses		
Legal & Prof. Fees	27,500	
Management Fees	400,000	
Total Operating Expenses		427,500
Total Expenses		<u><u>\$ 427,500</u></u>

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Exhibit 6

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PUBLIC VERSION – confidential materials excluded

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Exhibit 7

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